Rishi Pal vs State Nct Of Delhi on 12 December, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2901/2025
RISHI PAL
Through: Mr
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versus

STATE NCT OF DELHI
Through: Mr
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CORAM:
HON'BLE MR. JUSTICE RAVINDER DUDEJA
ORDER

% 12.12.2025

1. The present application has been filed under Section 482 BNSS [Section 438 Cr.P.C.] seeking grant of anticipatory bail to the petitioner/applicant in FIR No. 214/2025, registered at PS Vasant Kunj, South for offences under Sections 406/420/503/506/34 IPC. Factual Background

2. The case of the prosecution as per allegations in FIR is that the complainant- Director of M/s Countrywide Home & Farms Pvt. Ltd., entered into an Agreement to Sell dated 17.02.2018 with petitioner in respect of land measuring 7,264 sq. yds., wherein the complainant paid Rs. 25 lakhs as advance. It is alleged that upon applying for an NOC from the Revenue Authorities, he discovered that the said land stood vested in the Gaon Sabha This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 12/12/2025 at 21:26:55 and litigation was ongoing, which fact had been concealed by the petitioner at the time of the agreement. The complainant confronted the petitioner, who assured that he would clear all impediments, but soon thereafter the petitioner was arrested in FIR No. 164/2019.

3. After his release, the petitioner again approached the complainant in 2020 and stated that the earlier advance of Rs.25 lakhs had been spent in the criminal case, but would be adjusted in the final settlement. He further claimed he was getting the land cleared from the Gaon Sabha authorities.

4. The complainant further alleges that when a fresh Agreement to Sell dated 10.04.2022 was executed for the said land, the petitioner took Rs.50 lakhs as earnest money and further Rs.25 lakhs for obtaining clearance from Gaon Sabha authorities. The complainant asserts that he was handed

possession of the property and that he spent more than Rs.4 crores towards construction.

5. It is alleged that on 20.09.2022, one Ramesh Chandra Agarwal, claiming to be MD of M/s Agarwal Developers Pvt. Ltd., appeared at the site and asserted that he already executed an Agreement to Sell with the petitioner in 2012 for the same land and had paid the petitioner Rs.3 crores. When confronted, the petitioner avoided answering and rather, he along with associates, used threats, forcefully took possession, disconnected utilities, and damaged the complainant's site office. It is further alleged that the accused had forged revenue records earlier and induced the complainant to enter into the Agreement to Sell of 2018. FIR No. 214/2025 was registered at PS Vasant Kunj, South for offences under Sections 406/420/503/506/34 IPC.

6. Apprehending arrest, the petitioner moved an application seeking This is a digitally signed order.

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Submissions on behalf of the petitioner

7. Learned counsel for the petitioner submits that the present criminal proceedings arise out of what is essentially a purely civil and commercial dispute relating to Agreements to Sell immovable property executed between the parties in 2018 and again in 2022. It is urged that the complainant, having failed to perform his part of the contractual obligations and having defaulted in payment of the remaining consideration within the stipulated timelines, has pursued criminal proceedings merely as a device to exert pressure on the petitioner.

8. It is further submitted that the petitioner has not concealed any material fact and that the complainant was fully aware of the status of the land. The petitioner contends that the allegation in the FIR that the land was vested in the Gaon Sabha is misconceived in view of the de-vesting order dated 22.11.2021, passed by the Additional Collector, New Delhi, much prior to the execution of the fresh agreement dated 10.04.2022.

9. Counsel submits that the Agreement to Sell of 2012 with M/s Agarwal Developers Pvt. Ltd. was long since rendered infructuous by efflux of time and is barred by limitation. It is argued that at no stage did the petitioner induce the complainant by misrepresentation or forgery, and the ingredients of Sections 406 and 420 IPC are wholly absent, as no dishonest intention at the inception of the contract can be attributed to the petitioner.

10. It is urged that the petitioner has been cooperating with the investigation and is willing to join further inquiry as and when directed. He This is a digitally signed order.

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a permanent resident of Delhi, with deep roots in society, and there exists no likelihood of his fleeing the process of law or tampering with evidence. It is thus urged that anticipatory bail ought to be granted. Submissions on behalf of the State

11. Opposing the bail application, learned APP for the State arguing on lines of Status Report submits that the allegations in FIR disclose a systematic and deliberate course of deception, beginning with the Agreement to Sell of 2018, followed by inducement of the complainant into the Agreement to Sell of 2022, all the while suppressing the existence of an earlier Agreement to Sell of 2012 and the disputed status of the land.

12. It is argued that the material on record prima facie indicates that the petitioner forged or manipulated revenue records and misrepresented the nature and status of the land, thereby dishonestly inducing the complainant to part with substantial amounts of money. The complainant is stated to have invested over Rs.4 crores, besides construction of structure on the land. The alleged wrongful retention of these funds, coupled with the petitioner's subsequent conduct, constitutes grave economic fraud.

13. Learned APP further submits that the petitioner has not joined the investigation despite repeated notices, and his custodial interrogation is indispensable for recovering forged documents, tracing the flow of funds and unearthing the larger conspiracy.

14. It is also argued that the petitioner and his associates have allegedly threatened the complainant, attacked labourers and staff, disconnected utilities, and forcefully retaken possession of the site. These acts indicate an intention to interfere with the course of investigation and intimidate potential witnesses. Hence, it is prayed that the bail application be This is a digitally signed order.

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Analysis and Reasoning

15. The Court has carefully considered the rival submissions and perused the material on record. At this stage, the Court is not required to conduct a mini-trial but to see whether the allegations, if taken at face value, disclose prima facie case that justify custodial interrogation and whether the investigation would be impeded if protection is granted.

16. In the present case, the allegations in the FIR disclose a consistent pattern of inducement, concealment, and misrepresentation, beginning with the Agreement to Sell of 2018 and later in the Agreement to Sell of 2022. The complainant asserts that the petitioner had already entered into a prior Agreement to Sell in 2012 for the same land and had received substantial sums from another party- a fact allegedly suppressed during subsequent negotiations. The FIR further records allegations of forged revenue records having been shown to the complainant to induce him into the transaction. These allegations, at this stage, cannot be termed illusory or improbable.

17. The allegations extend beyond breach of contract. They include assertions of dishonest intention from inception, wrongful retention of funds, suppression of material facts, use of forged documents, and eventual forcible dispossession of the complainant. These aspects give the matter a distinct criminal colour, and therefore the petitioner cannot seek refuge under the plea of a purely civil dispute.

18. The record further reflects that the complainant claims to have invested more than Rs.4 crores, including payments directly to the petitioner and construction on the land. The Supreme Court in Y.S. Jagan Mohan Reddy v. CBI, (2013) 7 SCC 439 has observed that economic offences, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 12/12/2025 at 21:26:55 involving deep-rooted conspiracies and huge loss to victims, constitute a class apart, and that anticipatory bail in such matters must be granted with circumspection. As held by Supreme Court in Nimmagadda Prasad v. CBI, (2013) 7 SCC 466, economic offences involving huge loss of public funds need to be viewed seriously and considered as grave offences affecting the economy of the country as a whole and thereby posing a serious threat to the financial health of the country.

19. It is a settled proposition in law that the considerations for granting anticipatory bail are distinct from those applicable to regular bail. Such relief is meant to be extended only in rare and exceptional situations, and not as a matter of course. Custodial interrogation can be an indispensable tool in complex financial investigations and is qualitatively different from mere questioning a person who is protected by an order of anticipatory bail. In the present case, the custodial interrogation of the petitioner may be necessary to confront him with documentary evidence, unravel his financial dealings and unearth the larger conspiracy.

20. The allegations of intimidation, threats, disconnection of utilities, and forcible taking of possession, as alleged in the FIR, also raise serious concerns regarding the petitioner's willingness to submit to the due process of law. Such conduct demonstrates not only non-cooperation but an attempt to influence witnesses. The allegations, prima facie reflect a deliberate and systematic course of deception, coupled with subsequent acts of intimidation, which render the petitioner undeserving of pre-arrest protection at this stage.

21. In view of the foregoing discussion, the Court is satisfied that granting anticipatory bail would hamper the ongoing investigation and may embolden This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 12/12/2025 at 21:26:55 the petitioner to interfere with witnesses or evidence. The petitioner has failed to demonstrate any exceptional circumstance warranting exercise of the Court's extraordinary jurisdiction under Section 482 BNSS.

22. Considering the totality of circumstances and the reasons aforesaid, the present application is accordingly dismissed.

23. It is clarified that nothing stated herein shall tantamount to an expression on the merits of the case.

RAVINDER DUDEJA, J DECEMBER 12, 2025/AK This is a digitally signed order.

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